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#	Case Name Case Number	Tentative
1.	Landmark Research Group, LLC vs. Shea 2026-01561746	Before the court is the petition of petitioner Landmark Research Group, LLC (Petitioner) to compel contractual arbitration. As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. Code of Civil Procedure section 1290.4, subdivision (a), requires a petition to compel arbitration and notice of hearing to be served on the opposing party in the manner provided in the arbitration agreement. If the agreement does not provide a method of service and the respondent has not appeared in the case, section 1290.4, subdivision (a), requires the petition and notice of hearing to be served in the same manner as a summons if service is made in California. If service is made outside of California, service may be made by certified or registered mail and a signed return receipt is required. Here, Petitioner has failed to file a proof of service showing the petition or a notice of hearing was served on respondents Bart Shea, Bermite Recovery, LLC, Remediation Financial, Inc., or Shea-Connelly Development, LLC (collectively, Respondents). Petitioner has not identified any provision in the alleged arbitration agreement that dictates a particular method of service for this petition,

		nor has Petitioner provided any evidence to show where service may have been made, if at all. Moreover, it is unclear whether any of Respondents entered into an arbitration agreement with Petitioner. The agreement that is attached to the petition is a letter agreement by Petitioner addressed to Richard R. Thomas, Esq. of Smith LC in Mesa, Arizona. There is a signature line for "Approved, Responsible Party," but there is no indication who the "Responsible Party" is and the signature is not legible. Moreover, assuming the signature is that of Bart Shea, there is no evidence or other indication how that signature binds any of the other Respondents. The letter also does not include all the identified enclosures. The petition therefore is DENIED WITHOUT PREJUDICE based on the lack of service and proper notice, as well as the failure to establish the existence of an arbitration agreement between Petitioner and Respondent. The foregoing are not necessarily all the petition's shortcomings, but they are sufficient to support its denial. Any future petition will require much greater detail and evidentiary support as well as proper notice and service. Petitioner's counsel is ordered to give notice of this ruling.
2.	McPhatter vs. Fastrak Credit Corp. 2026-01563881	Before the court is the petition to compel arbitration and for monetary sanctions filed by petitioner Vardell James McPhatter (Petitioner). As more fully set forth below, the petition is GRANTED and Petitioner is awarded sanctions against respondent Fastrak Credit Corp. (Respondent) in the reduced amount of \$1,815. The drafting party of an arbitration agreement who fails to timely pay arbitration fees is in material breach of the arbitration agreement and waives its right to compel arbitration, provided the consumer properly files the demand and the arbitration provider properly provides invoices to all parties to the arbitration. (Code Civ. Proc. § 1281.97, subd. (a).) In such event, the consumer may either withdraw the claim from arbitration and proceed in a court of appropriate jurisdiction or compel arbitration in which the drafting party must pay reasonable attorney fees and costs related to the arbitration. (Code Civ. Proc. § 1281.97, subd. (b).) In addition, the consumer is entitled to reasonable attorney fees and costs incurred as a result of the material breach. (Code Civ. Proc., § 1281.99, subd. (a).) Here, Petitioner produced the parties' Conditional Sale Contract and Security Agreement which contains an